



LOVDATA

Act relating to activities in outer space (the Space Act)

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Ministry	Ministry of Trade, Industry and Fisheries
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Original title	Lov om aktiviteter i verdensrommet (romloven)

Kapitteloversikt:

Chapter 1. Purpose and scope

Chapter 2. Permits and transfers

Chapter 3. Registration of space objects

Chapter 4. The operator's obligations

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This is an unofficial translation of the Norwegian version of the Act and is provided for information purposes only. Legal authenticity remains with the Norwegian version as published in Norsk Lovtidend. In the event of any discrepancy, the Norwegian version shall prevail.

The translation is provided by the Ministry of Trade, Industry and Fisheries.

Chapter 1. Purpose and scope

Section 1. *Purpose*

The purpose of this Act is to facilitate space activities that contribute to commercial development, innovation, and the peaceful exploration of outer space. In the conduct of space activities, due regard shall be given to the environment and sustainability. Activities shall be conducted in a responsible and safe manner in accordance with Norway's national security interests.

Section 2. *Substantive scope*

This Act applies to space activity. Space activity means:

- a. the operation of spaceports;
- b. the launch of space objects into outer space;
- c. the manoeuvring or operation of space objects in outer space;
- d. other activities with a significant connection to the activities referred to in subparagraphs (a) to (c).

The King may issue regulations or make individual decisions regarding what is to be regarded as space activity.

The Ministry may issue regulations stipulating that military space activities shall be exempt from the Act in whole or in part, and in special cases, make individual decisions that military space activities shall be exempt from the Act in whole or in part.

Section 3. *Geographical scope*

The Act applies in Norway, including Svalbard and Jan Mayen, on Bouvet Island, and in the Norwegian dependencies in Antarctica.

If necessary to fulfil Norway's obligations under the Treaty of 27 January 1967 on the Principles Governing the Activities of States in the Exploration and Use of Outer Space, including the Moon and Other Celestial Bodies, the Ministry shall issue regulations stipulating that the Act applies to space activities outside Norwegian territory carried out:

- a. on Norwegian vessels or installations;
- b. by a Norwegian national or a legal entity established in Norway.

The Ministry may issue regulations stipulating that the Act shall apply in whole or in part to foreign vessels or to installations outside Norwegian territory.

Section 4. *Definitions*

For the purposes of this Act, the following definitions apply:

- a. *military space activity*: space activity carried out by the Ministry of Defence and its subordinate agencies, by allied forces, or by other entities for or on behalf of the Ministry of Defence and its subordinate agencies or allied forces, excluding the use of weapons transiting outer space towards their target;
- b. *space object*: any object or component launched into outer space;
- c. *operator*: any person carrying out space activities.

Chapter 2. Permits and transfers

Section 5. *Permit requirement*

Space activities may not be carried out without a permit from the supervisory authority. The Ministry may issue regulations concerning the requirements for applications for such permits.

The Ministry may issue regulations and make individual decisions regarding exemptions from the permit requirement.

Section 6. *Conditions for a permit*

The supervisory authority may, upon application, grant a permit for space activities if the following requirements are met:

- a. The operator has the necessary competence and sufficient financial resources to carry out the space activity in a responsible manner, the activity is insured in accordance with Section 18, and documentation of the ownership structure is provided.
- b. The space activity can be carried out in a responsible manner in accordance with the operator's duties under Chapter 4 and without disproportionate consequences for people and the environment on Earth or in outer space. To demonstrate that the requirements are met, the operator shall submit:
 1. an assessment of the risks associated with the space activity;
 2. a plan for systematic risk management for the space activity;
 3. an environmental impact assessment;
 4. a plan for the termination of the space activity.
- c. The operator has clarified any licensing obligations under the export control regulations and complies with the documentation requirements under the International Telecommunication Union's (ITU) rules for satellite notification.
- d. The space activity is not contrary to Norway's foreign policy or security policy interests. As a basis for this assessment, the supervisory authority shall obtain statements from the responsible Ministries.

A permit may not be granted if the space activity poses a non-negligible risk to national security interests. The responsible Ministries shall be consulted in the assessment of whether such a risk exists.

The Ministry may issue regulations on the requirements that must be met in order to obtain a permit for space activities.

Section 7. *Transfers*

The following actions require the consent of the Ministry:

- a. transfers of permits for space activities;
- b. other direct or indirect transfers of interests that may confer a decisive influence over an operator that has been granted a permit for space activities;
- c. transfers of ownership of space objects.

The Ministry may make its consent to a transfer abroad conditional upon the conclusion of an agreement between Norway and the other State concerning Norway's liability under international law.

The Ministry may issue regulations concerning the transfer of permits for space activities and of ownership of space objects.

Section 8. *Application fee*

The supervisory authority's costs in connection with administrative processing may be recovered from the operator by means of a fee. Such fees constitute a basis for enforcement by execution.

The Ministry may issue regulations concerning the assessment of fees pursuant to the first paragraph and the collection thereof.

Chapter 3. Registration of space objects

Section 9. *Registration obligation and registration of information*

The supervisory authority shall maintain a national register of space objects for which Norway is the launching State, in accordance with Article I and Article II, paragraph 1 of the Convention of 12 November 1974 on Registration of Objects Launched into Outer Space (the Registration Convention). If Norway is a launching State together with other States, the States shall jointly determine which State is to register the object in accordance with Article II, paragraph 2, of the Registration Convention.

The operator shall, as soon as possible after a launch, provide the supervisory authority with the following information regarding space objects launched into orbit around the Earth or beyond:

- a. which State or States are the launching States;
- b. a suitable identifier for the space object, such as a registration number;
- c. the date and place of the launch;
- d. basic orbital parameters specified as:
 1. the orbital period (nodal period);
 2. the inclination of the orbital plane (inclination);
 3. the highest point of the orbit (apogee);
 4. the lowest point of the orbit (perigee);
- e. information on the general functions of the space object.

The information shall be entered into the national register.

The register shall not contain information that is classified pursuant to Section 5-3 of the Security Act.

The Ministry may issue regulations concerning the national register of space objects.

Chapter 4. The operator's obligations

Section 10. *Responsible and safe operation*

Space activities shall be conducted in a responsible and safe manner in accordance with a risk management system.

The operator shall implement the necessary safety measures to be able to manage both deliberate and unintended incidents.

Section 11. *Environmental requirements, space debris, and the relationship to other*

activities

Space activities shall:

- a. not cause disproportionate damage to the environment;
- b. as far as possible, not result in space debris, including fragments, waste, and discarded or lost objects from human activity in outer space;
- c. not, to an unnecessary or unreasonable extent, impede or hinder other lawful activities.

Section 12. *Duty to disclose*

The operator shall inform the supervisory authority of:

- a. new or changed circumstances of significance to a permit for space activities;
- b. significant deviations from normal operations or from the date of termination of the space activity.

Section 13. *Preparedness*

To ensure the necessary national preparedness in the event of war, crisis, or other extraordinary situations, the Ministry may order operators engaged in space activities to provide assistance in the form of:

- a. emergency preparedness planning;
- b. conducting or participating in exercises and military space activities;
- c. physical security of important installations;
- d. cooperation with national, foreign, or international operators;
- e. reporting or exchange of information.

The Ministry shall determine a reasonable remuneration if an order entails significant costs for the party to whom it is addressed, and the costs are not offset by corresponding benefits.

The Ministry may issue regulations concerning who, in cases of doubt, is to be regarded as an operator under this section, the assessment of remuneration under the second paragraph, and the relationship to emergency preparedness legislation.

Section 14. *Regulations concerning the content of the requirements in this chapter and concerning exemptions from requirements, etc.*

The Ministry may issue regulations concerning the requirements in Sections 10 to 12, concerning further requirements or exemptions from requirements.

Chapter 5. Compensation and insurance**Section 15. *Strict liability***

An operator is liable for damages, regardless of fault, for damage caused by space objects to persons or property on the surface of the Earth and to aircraft in flight.

However, strict liability shall not apply if:

- a. the injured party has acted with intent or gross negligence;
- b. the injured party was injured whilst participating in a joint space activity.

Section 16. *Recourse*

If Norway, pursuant to an international agreement, has paid compensation for damage caused by a space object, the State may claim recourse from the operator of the space object. Section 7-6 of the Insurance Contracts Act shall then apply correspondingly.

Section 17. *Limitation of liability*

The authorities shall, in permits pursuant to Section 5, stipulate a limitation of liability. The limitation of liability shall not apply where intent or gross negligence has been demonstrated.

The Ministry may issue regulations concerning the limitation of liability under the first paragraph and the operator's liability under Sections 15 and 16.

Section 18. *Insurance obligation*

The operator shall hold insurance or other security covering liability for damages related to space activities pursuant to Sections 15 and 16. This does not apply to operators covered by the State's self-insurance arrangement.

The Ministry may issue regulations concerning the operator's insurance obligation.

Chapter 6. Supervision and inspection

Section 19. *Duty to supervise*

Supervision shall be exercised to ensure that space activities are carried out in accordance with the provisions laid down in or pursuant to this Act.

The Ministry may issue regulations specifying who is to exercise supervision of space activities under this Act.

Section 20. *Right of access for inspections*

The operator shall grant the supervisory authority unimpeded access to inspect facilities, areas, and installations when necessary to carry out proper supervision.

Section 21. *Disclosure of information*

The supervisory authority may order the operator to disclose information, documents, and other material necessary for the implementation of provisions laid down in or pursuant to this Act, decisions made pursuant to the Act, or Norway's international obligations.

Where special reasons so warrant, the supervisory authority may also require such information from parties other than the operator.

Section 22. Coverage of costs of supervision

The supervisory authority's costs incurred in carrying out supervision and other administrative tasks under this Act may be recovered from the operator through fees and sector levies. Fees and sector levies are a basis for enforcement by execution.

The Ministry may issue regulations on the assessment and collection of fees and sector levies.

Section 23. Investigation authority

The Norwegian Safety Investigation Authority is the responsible investigation authority in the event of accidents and other serious incidents in connection with civil and military space activities.

The provisions of the Aviation Act, Sections 12-6 to 12-9, apply correspondingly in connection with space activities.

The provisions of the Defence Accident Investigation Act, Sections 4 to 6, Sections 8 to 13 and Sections 15 to 26, apply correspondingly in connection with military space activities.

The Ministry may issue regulations concerning the work of the investigation authority, including provisions that supplement and clarify the provisions of the Act in the second and third paragraphs. The Ministry may issue regulations establishing a notification obligation for accidents relating to space activities.

Chapter 7. Administrative measures and administrative sanctions

Section 24. Order to rectify or cease

The supervisory authority may order the operator to rectify or cease any matter that contravenes provisions laid down in or pursuant to this Act. The order shall specify a time limit for compliance.

The supervisory authority may order a temporary suspension of space activities:

- a. in the event of a serious, repeated, or persistent breach of provisions laid down in or pursuant to this Act;
- b. if necessary to avert an imminent danger.

Section 25. Amendment and revocation

The supervisory authority may revoke, withdraw, amend the conditions of, or impose new conditions for a permit granted under provisions laid down in or pursuant to this Act if:

- a. the operator seriously, repeatedly, or persistently breaches provisions laid down in or pursuant to the Act;
- b. the operator has provided incorrect or incomplete information and the information has been of material significance to the permit;
- c. material preconditions for the permit have changed;
- d. the operator changes ownership, or the ownership structure changes;
- e. the space activity is contrary to national security interests;
- f. it follows from other applicable rules on the reversal of decisions.

Amendments to and revocation of a permit pursuant to the first paragraph may be made for a limited period. The limitation may be made conditional upon the rectification or amendment of specific matters.

In decisions pursuant to this section, due regard shall be given to the financial loss and the disadvantages that an amendment or revocation is likely to cause the operator, and the advantages and disadvantages that the amendment or revocation would otherwise entail.

The Ministry may issue regulations concerning the amendment and revocation of permits pursuant to this section.

Section 26. Coercive fine

In the event of a breach of provisions laid down in or pursuant to the Act, the supervisory authority may impose a coercive fine. The coercive fine shall commence if the operator fails to meet the time limit set by the supervisory authority for rectification.

If the breach has been committed on behalf of an undertaking, the coercive fine may be imposed on said undertaking. If a coercive fine has been imposed on a company that is part of a group of companies, the accrued coercive fine may also be recovered from the parent company.

In special cases, the supervisory authority may reduce or waive an accrued coercive fine.

The Ministry may issue regulations concerning the determination, assessment, recovery, remission, and duration of coercive fines.

Section 27. Administrative fine

The supervisory authority may impose an administrative fine on an operator who intentionally or negligently contravenes provisions laid down in or pursuant to Sections 10, 11, 14 or 18.

The Ministry may issue regulations on the assessment of administrative fines.

Chapter 8. Final provisions

Section 28. Entry into force and transitional provisions

The Act shall enter into force on a date to be determined by the King.

Any person carrying out space activities at the time the Act enters into force must apply for a permit within 12 months of the Act's entry into force in order to continue such activities. The Ministry may, by individual decision, grant exemptions from the application obligation.

Section 29. Amendments to other acts

From the date on which this Act enters into force, the following amendments shall be made to other acts:

1. The Act of 13 June 1969 No. 38 relating to the launch of objects from Norwegian territory etc. into outer space is repealed.
2. In the Act of 13 December 2024 No. 76 relating to electronic communications, Section 11-17 is repealed.

